Data Processing Agreement

Under the Digital Personal Data Protection Act, 2023 and the Digital Personal Data Protection Rules, 2025

This Data Processing Agreement (the **Agreement**) is made on 15 October 2026 (the **Effective Date**) at Bengaluru, India

BETWEEN

Thunder E-commerce, a company incorporated under the Companies Act, 2013 (CIN: U00000KA2020PTC000001), having its registered office at Plot 1, Sample Street, Demo Nagar, Bengaluru, Karnataka 560001, India (the **Data Fiduciary**, which expression includes its successors and permitted assigns);

AND

Star Technologies Pvt. Ltd., a company incorporated under the Companies Act, 2013 (CIN: U00000TG2020PTC000002), having its registered office at Plot 2, Example Park, Demo Hills, Hyderabad, Telangana 500001, India (the **Data Processor**, which expression includes its successors and permitted assigns).

The Data Fiduciary and the Data Processor are each a **Party** and together the **Parties**.

Recitals

A. The Data Fiduciary operates an online marketplace and e-commerce platform and determines the purpose and means of processing the personal data of its customers, sellers and other users.

B. The Data Fiduciary wishes to appoint the Data Processor to store and manage that personal data on its behalf, and the Data Processor has agreed to do so, on the terms of this Agreement.

C. Section 8(2) of the Digital Personal Data Protection Act, 2023 permits a Data Fiduciary to engage a Data Processor to process personal data on its behalf for activities related to offering goods or services to Data Principals only under a valid contract. This Agreement is that contract.

The Parties therefore agree as follows.

1. Definitions and Interpretation

1.1 In this Agreement:

Act means the Digital Personal Data Protection Act, 2023.

Rules means the Digital Personal Data Protection Rules, 2025 made under the Act.

Applicable Law means the Act, the Rules, the Information Technology Act, 2000 and every other law, regulation, direction or order in force in India that applies to the processing of Personal Data under this Agreement, each as amended from time to time.

Board means the Data Protection Board of India established under the Act.

Data Principal means the individual to whom the Personal Data relates and, where that individual is a child or a person with a disability who has a lawful guardian, includes the parent or lawful guardian.

Personal Data means any data about an individual who is identifiable by or in relation to such data, that the Data Processor processes on behalf of the Data Fiduciary under this Agreement, including the categories listed in Annexure A.

Personal Data Breach means any unauthorised processing of Personal Data, or accidental disclosure, acquisition, sharing, use, alteration, destruction or loss of access to Personal Data, that compromises its confidentiality, integrity or availability.

Processing has the meaning given in the Act and includes collection, recording, organisation, structuring, storage, adaptation, retrieval, use, alignment, combination, indexing, sharing, disclosure, restriction, erasure and destruction.

Services means the storage and management of Personal Data described in Annexure A.

Sub-processor means any third party engaged by the Data Processor to process Personal Data.

Security Measures means the technical and organisational measures set out in Annexure B.

1.2 Terms used but not defined in this Agreement (including Data Fiduciary, Data Processor and Consent Manager) have the meanings given in the Act and the Rules.

1.3 References to a statute or rule include that statute or rule as amended, re-enacted or replaced. Where the Act or the Rules bring an obligation into force on a later date, this Agreement applies that obligation from that date, and the Parties shall in the meantime follow the corresponding requirements as a matter of good practice.

1.4 If there is a conflict between this Agreement and any other agreement between the Parties (including any master services agreement) on the processing of Personal Data, this Agreement prevails.

2. Appointment, Roles and Scope

2.1 The Data Fiduciary appoints the Data Processor to store and manage the Personal Data for the sole purpose of providing the Services, and the Data Processor accepts the appointment.

2.2 The Parties acknowledge that the Data Fiduciary alone determines the purposes and means of processing Personal Data and remains responsible under Section 8(1) of the Act for compliance with the Act and the Rules, including in respect of processing carried out by the Data Processor or any Sub-processor.

2.3 The Data Processor shall process Personal Data only on the documented instructions of the Data Fiduciary, as set out in this Agreement and Annexure A or as given in writing from time to time. If the Data Processor believes an instruction breaches Applicable Law, it shall inform the Data Fiduciary promptly and may suspend that part of the processing until the Data Fiduciary confirms or withdraws the instruction.

2.4 The Data Processor shall not determine, or process Personal Data for, any purpose of its own. In particular, it shall not sell, rent, license or otherwise commercialise Personal Data, use it for analytics, profiling, advertising or product development of its own, or combine it with data from any other source, except as the Data Fiduciary instructs in writing.

3. Obligations of the Data Fiduciary

3.1 The Data Fiduciary shall ensure that it has a lawful basis for processing Personal Data and for instructing the Data Processor to process it, being either the consent of the Data Principal under Section 6 of the Act or a legitimate use under Section 7.

3.2 The Data Fiduciary shall give Data Principals the notice required by the Act and the Rules, and shall record and manage consent, including its withdrawal.

3.3 The Data Fiduciary shall ensure that Personal Data it provides to the Data Processor is complete, accurate and consistent to the extent the Act requires, and shall give lawful, documented instructions.

3.4 The Data Fiduciary shall publish the business contact information required by Section 8(9) of the Act and shall operate the grievance redressal mechanism required by Section 8(10).

4. Obligations of the Data Processor

4.1 The Data Processor shall:

(a) process Personal Data only in accordance with Clause 2.3;

(b) keep Personal Data confidential and ensure that every employee, contractor and other person it authorises to access Personal Data is bound by written confidentiality obligations and has received data protection training;

(c) limit access to Personal Data to those personnel who need it to provide the Services;

(d) maintain a written or electronic record of processing activities carried out for the Data Fiduciary, including the systems, locations and Sub-processors involved;

(e) comply with Applicable Law in providing the Services and promptly tell the Data Fiduciary if it can no longer do so; and

(f) give the Data Fiduciary the information and assistance it reasonably needs to demonstrate compliance with the Act and the Rules, including in any inquiry by the Board.

4.2 The Data Processor shall not process Personal Data of any Data Principal who is a child, or track or behaviourally monitor children, or direct targeted advertising at children, except on the Data Fiduciary's documented instructions and in a manner permitted by Section 9 of the Act and the Rules.

5. Security Safeguards

5.1 The Data Processor shall implement and maintain reasonable security safeguards to prevent Personal Data Breaches, as required by Section 8(5) of the Act and Rule 6 of the Rules. At a minimum these shall be equivalent to the safeguards the Data Fiduciary must maintain, and shall include the Security Measures in Annexure B.

5.2 Without limiting Clause 5.1, the Data Processor shall:

(a) protect Personal Data by encryption, obfuscation, masking or virtual tokens (or a combination of these) while stored and in transit;

(b) control access to the computer resources used to store and manage Personal Data;

(c) log, monitor and review access to Personal Data so that unauthorised access can be detected, investigated and remedied;

(d) retain the logs and Personal Data needed to detect, investigate and remedy a Personal Data Breach for at least one (1) year, as Rule 6 requires, and no longer than Clause 9 allows beyond that;

(e) maintain backups and business continuity arrangements so that processing can continue if confidentiality, integrity or availability is compromised; and

(f) test and review the effectiveness of the Security Measures at least annually and promptly remedy any weakness found.

5.3 The Data Processor shall not reduce the level of protection provided by the Security Measures during the term of this Agreement without the Data Fiduciary's prior written consent.

6. Personal Data Breach

6.1 The Data Processor shall notify the Data Fiduciary in writing of any actual or reasonably suspected Personal Data Breach without undue delay and in any event within twenty-four (24) hours of becoming aware of it. The notice shall be sent to the contact in Annexure D.

6.2 The notice shall, as far as known, describe the nature, extent, timing and location of the Personal Data Breach, the categories and approximate number of Data Principals and records affected, its likely cause and consequences, the measures taken or proposed to contain and remedy it, and the person who can give further information. The Data Processor shall supply further information as it becomes available, and in time for the Data Fiduciary to meet its own deadlines.

6.3 The Parties acknowledge that the Data Fiduciary must intimate the Board and each affected Data Principal of a Personal Data Breach under Section 8(6) of the Act and Rule 7 of the Rules, including a first intimation without delay and a detailed report to the Board within seventy-two (72) hours of becoming aware of the breach or within any longer period the Board allows. The Data Processor shall give all assistance needed to meet these obligations.

6.4 The Data Processor shall take immediate steps to contain and remedy the Personal Data Breach, preserve evidence, and cooperate with any investigation. Unless Applicable Law requires it, the Data Processor shall not notify the Board, any Data Principal or the

public of the breach without the Data Fiduciary's prior written approval of the content and timing.

6.5 The Data Processor shall bear the reasonable costs of investigation, notification, remediation and credit or identity monitoring to the extent the Personal Data Breach arises from its breach of this Agreement.

7. Sub-processors

7.1 The Data Processor shall not engage any Sub-processor without the Data Fiduciary's prior written authorisation. The Sub-processors approved at the Effective Date are listed in Annexure C.

7.2 The Data Processor shall give the Data Fiduciary at least thirty (30) days' written notice of any proposed addition or replacement of a Sub-processor, with details of its identity, location and the processing it will carry out. The Data Fiduciary may object on reasonable data protection grounds, and the Parties shall then work in good faith to resolve the objection. If they cannot, the Data Fiduciary may terminate the affected Services without penalty.

7.3 The Data Processor shall bind each Sub-processor by a written contract that imposes obligations no less protective than this Agreement, including the Security Measures and the breach notification duty, and shall remain fully liable to the Data Fiduciary for the acts and omissions of each Sub-processor.

8. Location of Data and Cross-Border Transfers

8.1 The Data Processor shall store and process Personal Data only at the locations in Annexure A, which shall be within India unless the Data Fiduciary approves otherwise in writing.

8.2 The Data Processor shall not transfer, or allow access to, Personal Data outside India without the Data Fiduciary's prior written consent. Any such transfer shall comply with Section 16 of the Act, Rule 15 of the Rules and any restriction, requirement or notification issued by the Central Government, including any restriction on transfers to a specified country or territory, and with any other Applicable Law on localisation of data.

8.3 If a restriction on a location or transfer takes effect under Applicable Law, the Data Processor shall comply with it from the date it takes effect and, if the Data Fiduciary asks, shall relocate the Personal Data at its own cost within a reasonable period the Data

Fiduciary specifies.

9. Retention, Erasure and Return

9.1 The Data Processor shall retain Personal Data only for as long as the Data Fiduciary instructs and as the Services require, and in no case longer than the period Applicable Law permits.

9.2 Where Section 8(7) of the Act requires erasure, namely when the Data Principal withdraws consent or the specified purpose is no longer being served, the Data Processor shall erase the Personal Data, and cause any Sub-processor to erase it, within seven (7) days of the Data Fiduciary's instruction, unless Applicable Law requires it to be retained.

9.3 The Parties acknowledge that Rule 8 of the Rules and its Third Schedule set time limits after which Personal Data is deemed to be no longer needed for certain classes of Data Fiduciary, including large e-commerce entities, and that the Data Fiduciary must give the Data Principal at least forty-eight (48) hours' notice before erasure. The Data Fiduciary shall be responsible for giving the notice and for confirming when the period has run. The Data Processor shall carry out the erasure when instructed and shall not erase Personal Data before the Data Fiduciary confirms that notice has been given.

9.4 Despite Clauses 9.2 and 9.3, the Data Processor shall retain the logs and Personal Data that Rule 6 and Rule 8 require to be kept, for at least one (1) year or any longer period those Rules specify, for the purposes of detecting, investigating and remedying breaches, and shall use them only for those purposes.

9.5 On expiry or termination of this Agreement, or earlier on the Data Fiduciary's instruction, the Data Processor shall within thirty (30) days return all Personal Data to the Data Fiduciary in a commonly used, machine-readable format and then securely erase all copies, including backups when their retention cycle allows, and shall give a written certificate of erasure signed by an authorised officer. Clause 9.4 applies to the extent it requires retention.

10. Rights of Data Principals and Grievances

10.1 The Data Processor shall give the Data Fiduciary the technical and organisational assistance it reasonably needs to respond to requests from Data Principals under the Act and the Rules, including requests for information about Personal Data, correction and updating, completion, erasure, withdrawal of consent and grievance redressal.

10.2 If the Data Processor receives a request, complaint or communication from a Data Principal, the Board or any other authority about Personal Data, it shall forward it to the Data Fiduciary within two (2) business days and shall not respond to it unless the Data Fiduciary instructs it to or Applicable Law requires it.

10.3 The Data Processor shall carry out corrections, updates and erasures on the Data Fiduciary's instruction within the time the Data Fiduciary needs to meet the periods set by the Rules, and shall in any event do so within five (5) business days.

11. Audit and Inspection

11.1 The Data Processor shall make available to the Data Fiduciary all information needed to show compliance with this Agreement and shall allow the Data Fiduciary, or an independent auditor it appoints who is bound by confidentiality, to audit and inspect its premises, systems, records and Sub-processors that relate to the Services, on fifteen (15) days' notice and during business hours.

11.2 The Data Fiduciary may audit at shorter notice following a Personal Data Breach or at the direction of the Board or any other authority. The Data Processor shall promptly correct, at its own cost, any non-compliance the audit finds.

11.3 The Data Processor shall, on request, provide a copy of its latest independent security assessment or audit report and shall cooperate fully with any inquiry, direction or inspection by the Board or any authority.

12. Confidentiality

12.1 The Data Processor shall treat Personal Data and all other information of the Data Fiduciary received under this Agreement as confidential and shall not disclose it to anyone except personnel and approved Sub-processors who need it to provide the Services, or as Applicable Law requires.

12.2 If the Data Processor is required by law, court order or any authority to disclose Personal Data, it shall, as far as lawful, notify the Data Fiduciary first, disclose only what is legally required, and help the Data Fiduciary to limit or challenge the disclosure.

12.3 This Clause survives termination of this Agreement.

13. Liability and Indemnity

13.1 The Data Processor shall indemnify and hold harmless the Data Fiduciary and its directors, officers and employees against all losses, damages, penalties, fines, claims, costs and expenses (including reasonable legal fees) arising from the Data Processor's or any Sub-processor's breach of this Agreement or of Applicable Law, including any penalty imposed on the Data Fiduciary by the Board to the extent it results from that breach.

13.2 Subject to Clause 13.3, the total liability of each Party under this Agreement shall not exceed the total fees paid or payable by the Data Fiduciary for the Services in the twelve (12) months immediately preceding the event giving rise to the claim.

13.3 The limit in Clause 13.2 does not apply to liability for a Personal Data Breach caused by the Data Processor's failure to maintain the Security Measures, for breach of Clause 2.4 or Clause 12, for fraud or wilful misconduct, or to any liability that cannot be limited by law.

13.4 The Data Processor shall maintain, throughout the term and for two (2) years after, cyber liability insurance of at least INR 5,00,00,000 (five crore rupees) and give the Data Fiduciary a certificate of insurance on request.

14. Term and Termination

14.1 This Agreement starts on the Effective Date and continues until the Services end, unless terminated earlier under this Clause.

14.2 The Data Fiduciary may terminate this Agreement or any part of the Services immediately by written notice if the Data Processor breaches this Agreement and, where the breach can be remedied, fails to remedy it within fifteen (15) days of notice; if there is a Personal Data Breach caused by the Data Processor; if the Data Processor becomes insolvent; or if the Board or any authority directs or Applicable Law requires it.

14.3 Either Party may terminate on ninety (90) days' written notice for convenience.

14.4 On termination the Data Processor shall continue to protect Personal Data until it is returned and erased under Clause 9, and the Data Processor shall give reasonable help for an orderly transition of the Services to the Data Fiduciary or its new provider.

14.5 Clauses 6.5, 9, 12, 13, 15 and 16 and any other provision that by its nature should survive shall survive termination.

15. Governing Law and Dispute Resolution

15.1 This Agreement is governed by the laws of India.

15.2 The Parties shall first try to resolve any dispute through good-faith negotiation between senior representatives within thirty (30) days of written notice of the dispute.

15.3 A dispute not so resolved shall be finally settled by arbitration under the Arbitration and Conciliation Act, 1996, before a sole arbitrator appointed under the rules of the Bangalore International Mediation, Arbitration and Conciliation Centre. The seat and venue of arbitration shall be Bengaluru, and the language shall be English.

15.4 Subject to Clause 15.3, the courts at Bengaluru shall have exclusive jurisdiction, and either Party may seek urgent interim relief from those courts to protect Personal Data or confidential information.

16. General

16.1 **Change in law.** If a change in Applicable Law, or any direction of the Board, requires changes to this Agreement, the Parties shall negotiate in good faith and amend it promptly. If they cannot agree, the Data Fiduciary may terminate the affected Services without penalty.

16.2 **Entire agreement and amendment.** This Agreement, with its Annexures, is the entire agreement on its subject matter and may be amended only in writing signed by both Parties.

16.3 **Assignment.** The Data Processor shall not assign or subcontract its rights or obligations without the Data Fiduciary's prior written consent, subject to Clause 7.

16.4 **Notices.** Notices shall be in writing and sent by hand, courier or email to the addresses in Annexure D, and take effect on delivery.

16.5 **Severability and waiver.** If any provision is held invalid or unenforceable, the rest of this Agreement remains in force. No failure or delay in exercising a right is a waiver of it.

16.6 **Counterparts.** This Agreement may be signed in counterparts, including electronically, each of which is an original.

IN WITNESS WHEREOF the Parties have signed this Agreement on the Effective Date.

For Thunder E-commerce (Data Fiduciary)

Name: Rohan Mehta

Designation: Director

Signature: _____

For Star Technologies Pvt. Ltd. (Data Processor)

Name: Priya Menon

Designation: Managing Director

Signature: _____

Witness 1: _____ Witness 2: _____

Annexure A: Description of Processing

Subject matter and purpose: Storage and management of Personal Data of the Data Fiduciary's platform users, to support order fulfilment, customer accounts, payments reconciliation, customer support and legal compliance, as the Data Fiduciary instructs.

Nature of processing: Hosting, storage, backup, retrieval, indexing, access management, correction, archival and erasure of Personal Data, and generation of access and audit logs.

Categories of Data Principals: Registered customers and guest purchasers; sellers and their representatives; delivery partners; children, where the platform permits, with verifiable consent of the parent or lawful guardian; other users of the platform.

Categories of Personal Data: Name, contact details, delivery addresses, account credentials (hashed), order and transaction history, payment tokens (no full card data), device and log data, customer support records, wishlist and browsing preferences, and returns and refund records.

Location of processing and storage: Primary data centre in Hyderabad, Telangana, India; disaster recovery site in Chennai, Tamil Nadu, India.

Duration and retention: For the term of the Agreement and as Clause 9 and Applicable Law provide. Account and order data are kept while the account is active and then for three (3) years from the Data Principal's last interaction with the platform, after forty-eight (48) hours' prior notice of erasure, as Rule 8 and its Third Schedule provide. Transaction records are kept for the period tax and accounting laws require. Logs and the Personal Data needed for breach detection are kept for at least one (1) year.

Annexure B: Security Measures

1. Encryption of Personal Data at rest and in transit using industry-standard algorithms, with managed keys kept separate from the data.
2. Obfuscation, masking or tokenisation of sensitive fields where full values are not needed.
3. Role-based access control, least privilege, multi-factor authentication for administrative access, and prompt removal of access on role change or exit.
4. Centralised logging and continuous monitoring of access to Personal Data, with alerts for unusual activity, and retention of logs for at least one (1) year, as Rule 6 requires.
5. Network security, including firewalls, segmentation and intrusion detection, and regular vulnerability scanning and penetration testing.
6. Regular, tested backups and a business continuity and disaster recovery plan.
7. Secure development and change management, with patching within defined timelines.
8. Physical security of data centres and secure disposal of media.
9. A documented incident response plan, tested at least annually.
10. Staff screening, confidentiality undertakings and periodic data protection training.
11. Certifications maintained by the Data Processor: ISO/IEC 27001 (information security management), ISO/IEC 27017 (cloud security controls), ISO/IEC 27040 (storage security) and ISO 9001 (quality management).

Annexure C: Approved Sub-processors

Name	Service provided	Location	Date approved
Demo Cloud Infra Pvt. Ltd.	Cloud hosting	Hyderabad, Telangana, India	15 October 2026
Demo Backup Services Pvt. Ltd.	Backup and disaster recovery	Chennai, Tamil Nadu, India	15 October 2026

Annexure D: Contacts for Notices and Breach Reports

Data Fiduciary: Ms. Meera Iyer, Data Protection Officer, Thunder E-commerce; email: privacy@thunder-ecommerce.example; phone: +91 80 0000 0001; address: Plot 1, Sample Street, Demo Nagar, Bengaluru, Karnataka 560001, India (the contact published under Section 8(9)).

Data Processor: Mr. Arjun Rao, Head of Information Security, Star Technologies Pvt. Ltd.; email: security@star-technologies.example; 24-hour security incident line: +91 40 0000 0002; address: Plot 2, Example Park, Demo Hills, Hyderabad, Telangana 500001, India.